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IN THE UNITED STATES BANKRUPTCY COURT
FOR THE MIDDLE DISTRICT OF NORTH CAROLINA
GREENSBORO DIVISION

In Re: JAMES LAWRENCE BRYANT, JR. and SHARON RENEA BRYANT a/k/a SHARON RENEA BLACKMON, Debtors.	)	Case No. 25-10147 Chapter 7
EASTWOOD CONSTRUCTION PARTNERS, LLC d/b/a EASTWOOD HOMES, Plaintiff, v. JAMES LAWRENCE BRYANT, JR. and SHARON RENEA BRYANT a/k/a SHARON RENEA BLACKMON, Defendants	)	Adversary Proceeding No. 25-02009

PLAINTIFF EASTWOOD CONSTRUCTION PARTNERS, LLC'S BRIEF IN SUPPORT OF ITS MOTION FOR SUMMARY JUDGMENT

Eastwood Construction Partners, LLC d/b/a Eastwood Homes ("Eastwood") submits this brief in support of its Motion for Summary Judgment on Eastwood's claim for willful and malicious injury under 11 U.S.C. § 523(a)(6) against Debtors James Lawrence Bryant, Jr. and Sharon Renea Bryant ("Defendants").

NATURE OF THE MATTER

For over two years, Defendants engaged in a campaign of tortious interference, defamation, and vexatious litigation against Eastwood. Defendants, themselves, have confessed that they "campaign[ed] to damage Eastwood's business and reputation in the neighborhood and on social media." ECF No. 33 at 2. As part of this campaign, they "approached Eastwood's customers and made negative comments about Eastwood, placed defamatory signs on their yards, and made

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Case No. 25-10147
Chapter 7

EASTWOOD CONSTRUCTION
PARTNERS, LLC d/b/a EASTWOOD
HOMES,
Plaintiff,
v.
JAMES LAWRENCE BRYANT, JR. and
SHARON RENEA BRYANT a/k/a
SHARON RENEA BLACKMON,
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social media.” ECF No. 3-3 at 2. As part of this campaign, they “approached Eastwood’s customers and made negative comments about Eastwood, placed defamatory signs on their yards, and made defamatory social media posts.” *Id.* Their conduct “caused Eastwood to lose at least one contract for the purchase of a lot and home in Piper Village. Eastwood suffered damages in the amount of at least $74,400 in profit on the sale of the lot and home.” *Id.* Defendants acknowledged that this amount of damages could be trebled under Chapter 75 of the North Carolina General Statutes, but confessed to a lesser amount of $150,000 in consideration of settlement. *Id.* at 3. Defendants executed such confession of judgment “freely, knowingly, and voluntarily waiv[ing] with prejudice any right they may have [had] to appeal, modify, stay, or vacate” the same. *Id.* at 3-4. No genuine issue of material fact exists regarding whether Defendants’ debt to Eastwood arises from willful and malicious injury. Moreover, Defendants are estopped from challenging the confession of judgment. Judgment in favor of Eastwood on its 11 U.S.C. § 523(a)(6) should be entered.

STATEMENT OF UNDISPUTED FACTS

I. Defendants contracted with Eastwood.

Eastwood is the builder and seller of all residential homes in the Cottages at Piper Village (“Piper Village”) in Trinity, Randolph County, North Carolina. ECF No. 31-1 ¶ 9. On or about June 25, 2022, Defendant James Lawrence Bryant, Jr. (“Mr. Bryant”), as buyer, and Eastwood, as seller, entered into a contract (the “Contract”) for the purchase of real property at 5629 Siler Street, Trinity, NC 27370 (the “Residential Property”). *Id.* ¶¶ 8-10. Defendants closed on the Residential Property on July 29, 2022. *Id.* ¶ 14.

II. Defendants intentionally interfered with Eastwood’s business and intended the resulting harm.

On or around February 7, 2023, Mr. Bryant entered the Eastwood model home at Piper Village. ECF No. 31-1 ¶ 15. He began complaining to Eastwood’s sales agent regarding the Homeowners Association (“HOA”), covenants (“Covenants”), the common areas of Piper Village, and issues within the City of Trinity’s jurisdiction – none of which were under

defamatory social media posts.” *Id.* Their conduct “caused Eastwood to lose at least one contract for the purchase of a lot and home in Piper Village. Eastwood suffered damages in the amount of at least $74,400 in profit on the sale of the lot and home.” *Id.* Defendants acknowledged that this amount of damages could be trebled under Chapter 75 of the North Carolina General Statutes, but confessed to a lesser amount of $150,000 in consideration of settlement. *Id.* at 3. Defendants executed such confession of judgment “freely, knowingly, and voluntarily waiv[ing] with prejudice any right they may have [had] to appeal, modify, stay, or vacate” the same. *Id.* at 3-4. No genuine issue of material fact exists regarding whether Defendants’ debt to Eastwood arises from willful and malicious injury. Moreover, Defendants are estopped from challenging the confession of judgment. Judgment in favor of Eastwood on its 11 U.S.C. § 523(a)(6) should be entered.

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Eastwood's control. *Id.* ¶¶ 15, 37; ECF No. 31-7, ¶¶ 4-6. Mr. Bryant told the sales agent that if he did not get what he wanted, he would make it difficult for Eastwood to build and sell homes in Piper Village. ECF No. 31-3, ¶ 17. Mr. Bryant's aggressive behavior made the sales agent uncomfortable. ECF 31-1 ¶ 15. As a result of this encounter, general counsel for Eastwood, Allen Nason, emailed a Notice of No Trespass to Mr. Bryant stating that Mr. Bryant was no longer authorized to enter onto any Eastwood property or approach any Eastwood employee within Piper Village, absent written approval. *Id.* Mr. Nason also provided Mr. Bryant with information regarding who to contact with respect to the Covenants, HOA matters, warranty matters, and any other issues. *Id.* Mr. Bryant did not respond to Mr. Nason's February 9, 2023 email or contact any of the parties that Mr. Nason suggested. *Id.* ¶ 16. Instead, Defendants launched a coordinated campaign to malign Eastwood and damage its business and reputation, *Id.* ¶¶ 16-17, including:

1. Placing, and causing others to place, signs on the Residential Property's yard and other locations that used Eastwood's name in a defamatory, libelous and misleading manner. One of these signs read: "EASTWOOD SLAVE VILLAGE." *Id.* ¶ 15.
2. Harassing potential buyers and realtors viewing lots at Piper Village and explicitly telling them not to buy homes in Piper Village. *Id.* ¶ 17.
3. Planning and leading a rally where Mr. Bryant made defamatory statements about Eastwood and brandished a "glock" pistol while giving remarks. *Id.* ¶¶ 22-27.
4. Posting defamatory statements about Eastwood on Facebook and TikTok. *Id.* ¶¶ 22-23, 34-35.

In an email to neighbors, Defendant Sharon Renea Bryant ("Mrs. Bryant") boasted that their actions had caused harm to Eastwood. *Id.* ¶ 30 and Ex. D at 2. In closing her April 2023 email, Mrs. Bryant stated: "[W]e are winning the fight! One potential buyer has already cancelled her contract to build and another is strongly considering the same! We will continue to fight until justice is done!" *Id.* Eastwood sent a formal cease and desist letter demanding that Defendants stop all threats to and harassment of Eastwood's employees, agents, or customers and

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any activity that defames, maligns, or otherwise impugns the character and good name of Eastwood, its homes, and its employees. *Id.* ¶ 33 and Ex. B at 4. Eastwood warned Defendants that their actions could affect Eastwood's customers, interfere with their business, and that "[e]very lost sale caused by anyone's unauthorized actions is being compiled as an item of damage." *Id.* ¶ 33 and Ex. B at 2-3. Defendants ignored the demand and instead continued with defamatory statements on social media and organized rallies against Eastwood. *Id.* ¶¶ 34-35.

III. Eastwood files a lawsuit against Defendants.

Defendants' refusal to cease and desist and associated damages forced Eastwood, in April 2023, to file a complaint and motion for a temporary restraining order for tortious interference with contract, interference with prospective economic advantage, defamation, breach of contract, and unfair and deceptive trade practices in North Carolina Superior Court in Randolph County (23 CVS 867) (the "State Lawsuit"). *See* ECF 31-1. On April 27, 2023, Eastwood succeeded in obtaining a temporary restraining order ("TRO") against Defendants preventing Defendants from continuing to interfere with Eastwood's business. *See* ECF No. 31-2.

In June 2023, Eastwood and Defendants appeared before the Honorable Alyson A. Grine[1] on Plaintiff's Motion for Preliminary Injunction. ECF No. 31-3. At that time, Judge Grine ruled from the bench that she would enter the preliminary injunction including the same terms as those in the TRO and that the TRO would remain in effect until the preliminary injunction was in place. *See id.* The written Preliminary Injunction Order was entered on June 27, 2023. *See id.* The Preliminary Injunction Order is nearly identical to the TRO with respect to the enjoined acts. ECF No. 31-2 at 2-3 and ECF No. 31-3 at 8-9. Moreover, the Preliminary Injunction Order makes findings that (1) Defendants made disparaging statements about Eastwood; (2) Defendants approached Eastwood's customers and caused one customer to cancel the contract; and, after the TRO was entered, (3) Defendants continued to post disparaging statements about Eastwood and approach Eastwood customers. *Id.* at 9.

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[1] Mr. Bryant referred to Judge Grine's court as "kangaroo court," ECF No. 31-4. Ex. B, and that the decision handed down by Judge Grine was a modern day version of the infamous 1857 Dred Scott case.

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Eastwood sent a formal cease and desist letter demanding that Defendants stop all threats to and harassment of Eastwood's employees, agents, or customers and any activity that defames, maligns, or otherwise impugns the character and good name of Eastwood, its homes, and its employees. *Id.* ¶33 and Ex. B at 4. Eastwood warned Defendants that their actions could affect Eastwood's customers, interfere with their business, and that "[e]very lost sale caused by anyone's unauthorized actions is being compiled as an item of damage." *Id.* ¶33 and Ex. B at 2-3. Defendants ignored the demand and instead continued with defamatory statements on social media and organized rallies against Eastwood. *Id.* ¶¶ 34-35.

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The day after the Preliminary Injunction hearing, Defendants violated the TRO and Judge Crine's oral ruling by posting defamatory signs in their yard intended to scare away Eastwood's customers. *See* ECF 31-5 at 3-5 and ECF 31-8. Defendants noticed an appeal of the Preliminary Injunction Order and began to violate the terms of the Preliminary Injunction Order. ECF No. 31-4 at 6. Eastwood then moved for entry of injunction pending appeal on the same terms as the Preliminary Injunction Order. *Id.* at 1. The motion for entry of injunction pending appeal came on for hearing before Judge Keith Gregory on July 5, 2023, and he ruled that an injunction on the same terms as the Preliminary Injunction Order would be granted. *Id.* at 7-8. The written order was entered on July 31, 2023 ("Injunction Pending Appeal"). *See* ECF No. 31-4. Shortly after the Injunction Pending Appeal, Mrs. Bryant violated the Injunction Pending Appeal by making defamatory statements about Eastwood in social media posts. *See* ECF No. 31-6 at 7-8. Defendants also failed to take down their defamatory signs by at least July 25, 2025. *See* ECF No. 31-9 ¶ 4.

When Defendants failed to comply with the TRO, Preliminary Injunction Order, and Injunction Pending Appeal, Eastwood filed two motion to show cause. *See* ECF No. 31-5; ECF No. 31-5, ECF No. 31-8. On September 5, 2023, Judge Gregory[2] heard the first Motion to Show Cause after Defendants were appointed counsel. At this hearing, Defendants consented to entry of orders of indirect criminal contempt for violation of the preliminary injunction and TRO with a suspended sentence of thirty days in jail and a one-year probation period. *See* ECF No. 31-10.

IV. Defendants file frivolous counterclaims, lawsuits, and complaints against Eastwood.

On May 19, 2023, Defendants retaliated against Eastwood with counterclaims in the State Lawsuit, alleging breach of contract, negligence, defamation, and unfair and deceptive trade practices. ECF No. 3-3 ¶ 9. On July 10, 2023, the Bryants filed their amended answer and counterclaims, adding new facts but no new claims. Eastwood moved to dismiss these

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[2] Defendants also filed a frivolous complaint against Judge Gregory with the North Carolina Judicial Standards Commission after Judge Gregory ruled against them.

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would be granted. *Id.* at 7-8. The written order was entered on July 31, 2023 ("the Injunction Pending Appeal"). *See* ECF No. 31-4.

Shortly after the Injunction Pending Appeal, Mrs. Bryant violated the Injunction Pending Appeal by making defamatory statements about Eastwood in social media posts. *See* ECF No. 31-6 at 7-8. Defendants also failed to take down their defamatory signs by at least July 25, 2025. *See* ECF No. 31-9 ¶ 4.

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counter[illegible] under 12(b)(6). All [illegible] dismissed by court order on November 22, 2023. ECF No. 31-21.

On July 31, 2023, the Bryants filed a lawsuit in the United States District Court in the Middle District of North Carolina (Case No. 1:23cv637) against Eastwood for federal racial discrimination claims, federal housing discrimination claims, housing discrimination claims under North Carolina law, and a North Carolina Unfair and Deceptive Trade Practices Act claim (the "Federal Lawsuit"). ECF No. 3-3 ¶ 11. Defendants also made frivolous complaints against Eastwood with the National Association for Advancement of Colored People ("NAACP"), ECF 31-6 at ¶ 20, the North Carolina Department of Justice, Federal Trade Commission, and United States Department of Housing and Urban Development, *id.* ¶ 16-1; ECF 31-13 at 1. None of these complaints resulted in any judgments, rulings, or other adverse actions against Eastwood.

V. Eastwood secures judgment against Defendants.

At the end of December 2023, the parties decided to resolve the parties' claims via settlement. ECF No. 3 ¶¶ 35-36. The Settlement Agreement provided that Eastwood would pay the Defendants $7,500. ECF 28 at 31. Defendants were required to (1) comply with the terms of the Preliminary Injunction Order in perpetuity, (2) dismiss the remaining counterclaim with prejudice within five (5) business days of payment, (3) dismiss the federal lawsuit against Eastwood with prejudice within five (5) business days of payment, (4) and dismiss all other complaints against Eastwood. *Id.* at 28-29. Eastwood bargained for the benefit of two objectives by way of the Settlement Agreement: (1) protection against Defendants' wrongful campaign against Eastwood's business and reputation, and (2) protection against Defendants' malicious and vexatious litigation. Because Defendants had a history of failing to comply with court orders, the Settlement Agreement also required Defendants to execute a confidential confession of judgment ("Confession of Judgment"). ECF 28 at 31. The Confession of Judgment would be kept confidential and would not be filed "unless and until an event of default occurs." *Id.*

Eastwood made a payment of $7,500 to Defendants. Defendants accepted the payment and never returned the payment. *See* ECF No. 3 ¶¶ 39-40; *see also* ECF No. 31-14, Ex. 1.

Defendants breached the settlement agreement days after signing by failing and refusing to

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Eastwood bargained for the benefit of two objectives by way of the Settlement Agreement: (1) protection against Defendants' wrongful campaign against Eastwood's business and reputation; and (2) protection against Defendants' malicious and vexatious litigation.

Because Defendants had a history of failing to comply with court orders, the Settlement Agreement also required Defendants to execute a confidential confession of judgment dismiss the federal lawsuit. ECF No. 3 ¶ 40. On January 10, 2024, Eastwood moved to enforce the settlement agreement, asking the court to, among other relief, (1) order Defendants to dismiss the Federal Lawsuit; and (2) declare that Eastwood was permitted to file the Confession of Judgment. ECF No. 3 ¶ 42. In the time before the enforcement motion was set for hearing, Defendants began to make unjustified demands for additional money. The day after Eastwood filed the enforcement motion, Defendants emailed counsel for Eastwood and stated that they would dismiss the Federal Lawsuit, but it would “cost your client a few more concessions,” including additional compensation of $17,500. *See* ECF 31-14, Ex. 1. Defendants made an additional demand of $17,500 on February 4, 2024, and an additional demand of $25,000 on February 7, citing the payment as a condition for dismissing the federal lawsuit. *See id.*, Exs. 2, 3. Defendants repeatedly referenced the Federal Lawsuit as a “$25 million” case to threaten Eastwood into paying more money to Defendants to avoid judgment. *See id.*, Exs. 3, 8. Defendants also repeatedly told Eastwood that Eastwood “won’t collect a dime” if the enforcement motion was granted, *id.*, Ex. 4, and “[s]ounds like bankruptcy chapter 7 coming of [sic] needed.” *id.*, Ex. 5; *see also id.*, Ex. 7 (“the judgment will ultimately be overturned thru the appellate Court and worse case written off by means of bankruptcy”). On March 22, 2024, the enforcement motion was granted (“Enforcement Order”). ECF No. 3-2.

On March 25, 2024, Eastwood filed Defendants’ Confession of Judgment in the amount of $150,000. ECF No. 3-3 at 3. In the Confession of Judgment, Defendants explicitly (1) admitted that they were liable to Eastwood in the amount of $150,000 on Eastwood’s claims for tortious interference with contract, tortious interference with prospective economic advantage, defamation, breach of contract, and unfair and deceptive trade practices. ECF No. 3-3 at 2, 3; and (2) “acknowledge[d] that their liability to Eastwood is not subject to any defense, counterclaim, or offset”; and (3) “Defendants freely, knowingly, and voluntarily waive with prejudice any right they may have to appeal, modify, stay, or vacate this Judgment . . .” *Id.* at 4.

(“Confession of Judgment”). ECF No. 28 at 3. The Confession of Judgment would be kept confidential and would not be filed “unless and until an event of default occurs.” *Id.*

Eastwood made a payment of $7,500 to Defendants. Defendants accepted the payment and never returned the payment. *See* ECF No. 3 ¶¶ 39-40; *see also* ECF No. 31-14, Ex. 1.

Defendants breached the settlement agreement days after signing by failing and refusing to dismiss the federal lawsuit. ECF No. 3 ¶ 40.

On January 10, 2024, Eastwood moved to enforce the settlement agreement, asking the court to, among other relief, (1) order Defendants to dismiss the Federal Lawsuit; and (2) declare that Eastwood was permitted to file the Confession of Judgment. ECF No. 3 ¶ 42.

In the time before the enforcement motion was set for hearing, Defendants began to make unjustified demands for additional money. The day after Eastwood filed the enforcement motion, Defendants emailed counsel for Eastwood and stated that they would dismiss the Federal Lawsuit, but it would “cost your client a few more concessions,” including additional compensation of $17,500. *See* ECF 31-14, Ex. 1. Defendants made an additional demand of $17,500 on February 4, 2024, and an additional demand of $25,000 on February 7, citing the payment as a condition for dismissing the federal lawsuit. *See id.*, Exs 2, 3. Defendants repeatedly referenced the Federal Lawsuit as a “$25 million” case to threaten Eastwood into paying more money to Defendants to avoid judgment. *See id.*, Exs 3, 8. Defendants also repeatedly told Eastwood that Eastwood “won’t collect a dime” if the enforcement motion was granted, *id.*, Ex. 4, and “[s]ounds like bankruptcy chapter 7 coming of [sic] needed.” *id.*, Ex. 5; *see also id.*, Ex. 7 (“the judgment will ultimately be overturned thru the appellate Court and worse case written off by means of bankruptcy”).

On March 22, 2024, the enforcement motion was granted (“Enforcement Order”). ECF No. 3-2.

VI. Defendants pursue frivolous action against Eastwood and Eastwood's counsel.

Defendants did not comply with the Enforcement Order or Settlement Agreement. In the State Lawsuit, Defendants continued a frivolous appeal against Eastwood and eventually failed to prosecute it. *See* ECF No. 31-21. In the Federal Lawsuit, Eastwood moved to dismiss and enforce the Settlement Agreement. *See* ECF No. 31-22 at 1. After the federal court granted Eastwood's motion, Defendants also pursued a frivolous challenge of the federal court's order. *See* ECF No. 31-23 and ECF No. 31-24. After Eastwood appeared in the instant proceeding, Defendants retaliated against Eastwood's counsel in the State Lawsuit and Federal Lawsuit. Defendants filed a grievance with the North Carolina State Bar against Eastwood's counsel based on the filing of the Confession of Judgment. *See* ECF 31-25. The grievance had no merit or foundation. *See id.* Additionally, on November 13, 2025, Defendants directly emailed Eastwood's general counsel and indicated that they would be pursuing a malpractice claim against undersigned counsel. *See* ECF 31-26.

VII. Defendants communicated intent to violate the Enforcement Order and the Settlement Agreement.

After the deadline to appeal the federal court's final order passed in the Federal Lawsuit, Eastwood filed a voluntary dismissal in the State Lawsuit on November 3, 2025. On November 12, 2025, Defendants filed a notice of dissolution of injunction due to dismissal with prejudice ("Notice") in the now closed State Lawsuit. ECF No. 31-15. In the Notice, Defendants stated their intention to violate the injunction set forth in the Enforcement Order and the Settlement Agreement by claiming that the voluntary dismissal did not preserve any injunction and that the injunction provision in the enforcement order was dissolved by operation of law.

CONCLUSION

For the foregoing reasons, the Court should enter summary judgment in Eastwood's favor on its claim for willful and malicious injury under 11 U.S.C. § 523(a)(6).

On March 25, 2024, Eastwood filed a Confession of Judgment in the amount of $150,000. ECF No. 3-3 at 3. In the Confession of Judgment, Defendants explicitly (1) admitted that they were liable to Eastwood in the amount of $150,000 on Eastwood's claims for tortious interference with contract, interference with prospective economic advantage, defamation, breach of contract, and unfair and deceptive trade practices, ECF No. 3-3 at 2, 3; and (2) "acknowledge[d] that their liability to Eastwood is not subject to any defense, counterclaim, or offset"; and (3) "Defendants freely, knowingly, and voluntarily waive with prejudice any right they may have to appeal, modify, stay, or vacate this Judgment." *Id.* at 4.

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After Eastwood appeared in the instant proceeding, Defendants retaliated against Eastwood's counsel in the State Lawsuit and Federal Lawsuit. Defendants filed a grievance with the North Carolina State Bar against Eastwood's counsel based on the filing of the Confession of Judgment. *See* ECF 31-25. The grievance had no merit or foundation. *See id.*

Additionally, on November 13, 2025, Defendants directly emailed Eastwood's general counsel and indicated that they would be pursuing a malpractice claim against undersigned counsel. *See* ECF 31-26.

This the 14th day of November, 2025.

/s/ Katarina K. Wong

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This the 14th day of November, 2025.

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CERTIFICATE OF SERVICE

I hereby certify that the foregoing Brief in Support of the Motion for Summary Judgment was served on all parties who have made an appearance in the above captioned bankruptcy case by filing with the Court's CM/ECF system and by mailing as shown below.

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This the 14th day of November, 2025.

/s/ Katarina K. Wong

I hereby certify that the foregoing Brief in Support of the Motion for Summary Judgment was served on all parties who have made an appearance in the above captioned bankruptcy case by filing with the Court's CM/ECF system and by mailing as shown below.

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